

information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” CCP 431.30(e).

A judge must deny a plaintiff’s motion for judgment on the pleadings if the defendant’s answer raises any material issue or sets up any affirmative matter constituting a defense. *Allstate Ins. Co. V KimW.* (1984) 160 CA3d 326, 330–331.

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

A court can grant a motion for judgment on the pleadings with leave to amend. CCP 438(h)(1). The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, Defendant admits all of the elements of a breach of contract, the sole cause of action.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted in the amount of \$19,653.80.

Plaintiff to file Order and to provide written notice of the Order to Defendant.

**11. 9:00 AM CASE NUMBER: L26-00135
CASE NAME: WELLS FARGO BANK, N.A. VS. CRISTINA SMITH**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff has submitted a Motion for Summary Judgment, along with accompanying documents.

Defense filed a Response.

Background

The dispute stems from a credit card agreement, where Plaintiff alleges Defendant applied for a credit card, used the card and incurred debt, and failed to repay the debt. Plaintiff submitted the purported agreement which reflects that the cardmember agrees to the terms of the agreement by using the card.

Defendant, in her Response, invokes her right to settle this claim by virtue of arbitration. She points to a provision of the cardmember agreement, included in Plaintiff's declaration of their qualified witness (page 17 of the purported agreement), that any disputes shall be resolved by arbitration upon demand by either party. It also reflects that a party can trigger this process at any time "notwithstanding that a lawsuit or other proceeding has been previously commenced." (P.18 of purported agreement.)

Plaintiff, in their Reply, doesn't respond to this request.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, this court finds that there exists a written arbitration agreement between the parties, and the dispute at issue is subject to that agreement. Moreover, although Plaintiff has not explicitly refused to arbitrate, Defendant did request arbitration in their Response, and Plaintiff did not assent.

Thus, this court will compel the parties to arbitrate.

Disposition

Plaintiff's Motion is denied.

Defendant to begin arbitration process within 30 days of this Order, 8/25/26.

Defendant to file Order.

12. 9:00 AM CASE NUMBER: L26-00428
CASE NAME: FORD MOTOR CREDIT COMPANY LLC VS. RICHARD CHO
TO CHANGE VENUE
FILED BY: CHO, RICHARD
TENTATIVE RULING: